



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

December 28, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 9761
(ELEVENTH REVISION)

EXPIRATION DATE: 2026-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Meggitt Safety Systems, Inc.
Simi Valley, CA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale, and use of cylinders similar to the DOT Specification 4DS cylinder, except the material is constructed of the stainless steel in paragraph 7.a. This special permit provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a), party status may not be granted to a manufacturing special permit. These packaging may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302a and 173.304a(a)(1) in that a non-DOT specification cylinder is not authorized, except as specified herein.

5. BASIS: This special permit is based on the application of Meggitt Safety Systems, Inc. dated December 5, 2022, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Compressed gas, n.o.s.	2.2	UN1956	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Prescribed packaging is a welded steel, non-DOT specification cylinder conforming with DOT Specification 4DS (49 CFR 178.47), except as follows:

§ 178.47(a) Type, size and service pressure.

Type and size: Welded spheres (2 seamless hemispheres) or circumferentially welded cylinders, not over 75 cubic inches (nominal) water capacity conforming with Systron Donner's drawings D7654A and D7653A, or D7652A and D7651A; or drawings D8210 Rev. P-3 and D-900979; or not over 225 cubic inches capacity conforming with Systron Donner's drawings D8754P4 and D8596P1 on file with the Office of Hazardous Materials Safety (OHMS).

Service pressure: Not over 700 psig.

§ 178.47(b) Steel. Type nitronic 40 (ARMCO 21-6-9) austenitic stainless steel with analysis as follows:

Element	Percent Min.	Percent Max.
C	-	0.04
Si	-	1.00
S	-	0.030
Mn	8.00	10.00

Element	Percent Min.	Percent Max.
Cr	19.00	21.50
P	-	0.060
Ni	5.50	7.50
N	0.15	0.40

§ 178.47(f) Wall thickness.

Minimum wall thickness must be such that the wall stress does not exceed 60,000 pounds per square inch, at 2 times the marked service pressure. Minimum wall thickness for any diameter cylinder must be 0.035 inch.

- (1) Applies except that P = 2 times marked service pressure.
- (2) Applies except that P = 2 times marked service pressure.

§ 178.47(g) Heat treatment. Cylinders may be stress relieved or annealed for forming. Welded cylinder must be stress relieved at a temperature of 900 °F $\pm$ 25 °F after process treatment and before hydrostatic test.

§ 178.47(n) * * * *

- (1) * * * *

- (2) Burst pressure must be at least 5 times service pressure or 4/3 times the test pressure whichever is greater.

§ 178.47(q) Marking. Applies except “DOT-SP 9761” must be substituted for the DOT-4DS specification marking followed by the service pressure. Test pressure must be marked (TP-____) followed by the pressure at which the cylinder was tested, for example, “TP-2,700”. This marking must precede or be located immediately above the date of test.

- b. TESTING: Retest and reinspection must be in accordance with the provisions of 49 CFR 180.205, as prescribed for DOT Specification 4DS cylinders, except that the retest pressure must be that stamped on the cylinder.

c. OPERATIONAL CONTROLS: A copy of the inspector's report on the first lot of cylinders produced of each design must be submitted to the OHMS prior to initial shipment.

8. SPECIAL PROVISIONS:

a. Shippers may reshipe the cylinders covered by this special permit pursuant to § 173.22a provided:

(1) They are in unopened outside packagings as originally received; or

(2) They are repackaged in strong outside packagings in accordance with § 173.301(a)(9).

b. Cylinders are for aircraft use only.

c. The cylinders must be shipped in strong outside packagings in accordance with the provisions of § 173.301(a)(9). The pressure vessels are acceptable for shipment with the properly approved actuating cartridges installed in the discharge outlet.

d. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

e. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

f. Each packaging manufactured under the authority of this special permit must be marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.

g. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWF/Casey Chambers